Responsible Administrator: Provost
Responsible Office: Dean Research & Innovation
Effective Date: 09/18/2025
Approved by: Academic Affairs Council
Date Reviewed (no substantive changes): 09/18/2025

Intellectual Property Policy

Policy Statement

This policy is intended to support faculty, staff, and students in identifying and protecting intellectual property, defining the rights and responsibilities of all involved, administering intellectual property matters, and establishing support offices to provide the required assistance. It also stipulates how income generated for the University should be distributed.

Southeastern Louisiana University recognizes that research and scholarship should be encouraged without regard to potential gain from licensing fees, royalties, or other such income; however, the University also recognizes that patentable inventions and discoveries may arise from faculty, staff, and student research. The policies governing the administration of such inventions should provide adequate recognition and incentive to inventors and at the same time ensure that the University will share in the rights pertaining to inventions in which it has an equity. Any incomes accruing to the University shall be used in the furtherance of the University's academic mission.

Purpose of Policy

Consistent with the policies of the University of Louisiana System, Southeastern Louisiana University's Intellectual Property Policy has the following objectives:

1. To encourage research and scholarship as creative academic endeavors while recognizing that commercially valuable intellectual properties may result from such endeavors;

2. To delineate procedures to encourage creators to report discoveries with broad commercial potential and public benefit and to assist them, while at the same time safeguarding the interests of all concerned parties;

3. To make intellectual property developed in the course of academic research available to the public under conditions that will promote its effective and timely use and development;

4. To optimize the environment and incentives for research and scholarly activity and for the creation of new knowledge;

5. To ensure that the educational mission of the University is reinforced.

Compliance with UL System Intellectual Property Policy

The Intellectual Property Policy of Southeastern Louisiana University is subject to the requirements set forth in the most recent version of the UL System Intellectual Property Policy currently in effect.

Southeastern's Intellectual Property policy, including attachments and hyperlinks, constitutes the entire understanding and agreement with respect to the subject matter hereof and supersedes all prior representations and understandings, whether oral or written. Southeastern's policy is consistent with the UL System policy governing Intellectual Property. Provisions set forth in the institution's policy are provided to supplement and clarify, not replace the System policy, except in circumstances where a waiver from the UL System IP Policy has been obtained by Southeastern.

Any inconsistency shall be resolved by giving precedence to the most recent version of the UL System IP policy currently in effect.

Applicability

This policy applies to all Southeastern faculty, staff, and students.

Policy Procedure

Management of Intellectual Property

1. Acknowledgement of Institutional Authority

   The President of Southeastern Louisiana University has the ultimate authority for the stewardship of intellectual property appropriate to the University's role, scope, and mission.

2. Intellectual Property Committee

   - The Intellectual Property Committee shall have the following responsibilities:
     - Devise, subject to approval by the proper authorities, institutional intellectual property policies, and advise the Provost on the implementation of those policies, and the status and conduct of the University's technology transfer efforts.
     - Serve as advocate to the University's personnel for the institution's technology transfer efforts.
     - Recommend to the Provost the equitable distribution of income from the development and marketing of those intellectual property rights in which the University has a vested interest.
     - Serve as the University's Intellectual Property Advocate (IPA)
   - Intellectual Property Committee Membership and Selection

     The committee shall consist of nine voting members. The Provost shall appoint three administrators (department head or above) and one unclassified staff member. The Provost shall appoint five faculty members, taking into consideration the recommendation of the Faculty Senate.
   - Intellectual Property Committee Procedures
     - All decisions shall be made by a majority vote of the members present, provided that a quorum is present.

- Committee members shall maintain confidentiality of the specific issues brought before it. Failure to respect that confidentiality shall result in immediate dismissal from the Committee.

- By a majority vote, the Committee shall elect its chair each year.

- The Committee shall meet at least once each fall and spring semester.

- The Committee shall attach the following disclaimer to all policy recommendations that it makes:

  "The above recommendation by the Intellectual Property Committee represents our decision based on the information available at the time the decision was made. Any changes in the information, regardless of the recommendation, should be reported to the IP Committee. We reserve the right to change our decision based on any new information."

Policy Administration

1. Creator(s) shall use the Intellectual Property Disclosure Form (see Appendix) to report intellectual property required to be disclosed. One copy of the form is to be sent to the Provost and one copy is to be sent to the chair of the Intellectual Property Committee. All forms submitted to the Provost will be retained in a permanent file in the Provost's office or other location designated by the Provost.

2. All revenues or equity from applicable intellectual property will be collected and distributed by the Controller's Office, which shall maintain records of all related income and expense.

3. The University's share of net revenues (which is normally 60% of net revenue) from applicable intellectual property shall be apportioned as follows:

   - the University shall receive 50%
   - the College shall receive 25%
   - the Department where the work was accomplished shall receive 25%

Intellectual Property Advocate (IPA)

The responsibilities of the IPA shall be to:

1. Encourage research and scholarly activities.

2. Review and recommend to the Provost changes in procedure.

3. Resolve questions of intellectual property ownership.

4. Make such recommendations as are deemed appropriate to encourage disclosures and ensure prompt and effective handling, evaluation, and management of intellectual property opportunities while protecting the interests of the University, the University of Louisiana System, and the public.

Dispute Resolution Procedure

Should a Creator disagree with an interpretation of the Policy or with a decision made regarding Intellectual Property, the procedure is to notify his or her direct supervisor. The supervisor will then direct the grievance to the appropriate vice president (through normal chains of command). The vice president may choose to convene the Intellectual Property Committee and present all of the materials related to the grievance for their consideration. The Committee will present a recommendation to the vice president. The vice president will consider the recommendation from the Committee, the materials presented by the Creator of the Intellectual Property, as well as any other recommendations from supervisors through the chain of command. The decision of the vice president will be final.

[End of Policy]

Appendix

Intellectual Property Disclosure Form

Note:

- The purpose of this form is to allow a person, or persons, to announce research projects and claim a level of ownership.
- The University's share of net revenues (which is normally 60% of net revenue) from applicable intellectual property shall be apportioned as follows:
  - the University shall receive 50%
  - the College shall receive 25%
  - the Department where the work was accomplished shall receive 25%
- One copy of this form is to be sent to the Provost and one copy to the chair of the Intellectual Property Committee.

1. Title of Research Project: _____

2. Researcher(s) / Author(s) / Inventors / Participants / Artists ***(Herein known as "Researcher(s)")***

Name: _____	Name:
Dept.: _____	Dept.: _____
E-mail: _____	E-mail: _____
Phone: _____	Phone:
% of Contribution: _____	% of Contribution: _____
Name: _____	Name: _____
Dept.: _____	Dept.: _____
E-mail: _____	E-mail: _____
Phone: _____	Phone: _____
% of Contribution: _____	% of Contribution: _____
Name: _____	Name: _____
Dept.: _____	Dept.: _____
E-mail: _____	E-mail: _____
Phone: _____	Phone: _____
% of Contribution: _____	% of Contribution: _____

3. Are there any outside companies assisting or funding this project? Yes/No: If yes, please list:

_____

_____

_____

4. Give a narrative description of this project. Specify University Resources to be used for this project. *(Attach additional pages if necessary)*

_____

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5. Where and/or how will this idea be used/implemented? Include possible uses. *(Attach additional pages if necessary)*

_____

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6. Provide a schedule of research in months/years format. *(Attach additional pages if necessary)*

_____

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7. What, specifically, is expected to happen once research is complete? *(Attach additional pages if necessary)*

_____

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8. What percentage of intellectual property already dedicated to this project was brought to Southeastern prior to creating this document?

8a. Please explain this information/research, if any, and how you think it should be handled in terms of any possible monies from this project's completion. (Attach additional pages if necessary)

_____

_____

_____

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9. How would you like the Intellectual Property aspect of this project to be handled?

☐ Researcher(s) have read Southeastern's Intellectual Property Rules and Regulations and agree to them fully.

☐ Researcher(s) do not agree with Southeastern's Intellectual Property Rules and Regulations and wish to have this project brought before the Intellectual Property Committee.

Please explain the concerns and/or suggestions the researcher(s) would like to bring before the committee. (Attach additional pages if necessary)

_____

_____

_____

_____

10. Please sign below to state that all information, to the best of your knowledge, is true. By signing you are also affirming that you have been made aware of, and understand, Southeastern's Intellectual Property Rules and Regulations contained within this document and the faculty handbook. Sign Full Names:

Researcher: _____ **Date:** _____

Researcher: _____ **Date:** _____

Researcher: _____ **Date:** _____

Researcher: _____ **Date:** _____

Researcher: _____ **Date:** _____

Researcher: _____ **Date:** _____

Department Head as witness* _____ **Date:** _____

If researcher(s) span departments, only one department head signature is required to act as witness.